

HOUSE BILL 996

By Martin B

AN ACT to amend Tennessee Code Annotated, Title 39;
Title 53; Title 63 and Title 68, relative to
psychologists.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 63, Chapter 11, Part 2, is amended by
adding the following as a new section:

63-11-227.

(a) As used in this section:

(1) "Advanced certificate to prescribe as a prescribing psychologist"
means a certificate granted to a prescribing psychologist by the board following
the completion of the requirements of this section that permits the prescribing
psychologist to exercise independent prescriptive authority as described in this
section and the rules promulgated by the board;

(2) "Board" means the board of examiners in psychology;

(3) "Controlled substance" means any drug substance or immediate
precursor enumerated in schedules I-VI of the federal Controlled Substance Act
(21 U.S.C. § 801 et seq.) and as adopted by the Tennessee Food, Drug and
Cosmetic Act, compiled in title 53, chapter 1;

(4) "Drug" has the same meaning as defined in § 53-1-102;

(5) "Initial certificate to prescribe" means a document, issued by the
board to a psychologist who is licensed as a health service provider in this state,
to prescribe psychotropic medication under supervision by a physician pursuant
to this chapter;

- (6) "Narcotic drug" has the same meaning as defined in § 39-17-402;
- (7) "Opiate" has the same meaning as defined in § 39-17-402;
- (8) "Prescribe" means the act of ordering a prescription, whether verbally or in writing;
- (9) "Prescribing psychologist":
 - (A) Means a licensed, doctoral-level psychologist who has:
 - (i) Fulfilled the additional requirements for a certificate to prescribe medication set forth by the board pursuant to this section; and
 - (ii) Received a certificate to prescribe from the board, which has not been revoked or suspended; and
 - (B) Includes the alternative title of "medical psychologist" that is used by the United States drug enforcement agency and the national provider identifier registry;
- (10) "Prescription" means an order for a drug, laboratory test, device, or treatment, or the decision to continue, change the dosage of, or discontinue an order for a drug, device, or treatment, regardless of the origin of the order; and
- (11) "Prescriptive authority" means the authority to engage in the evaluation and management of a patient and to generate prescriptions; administer, discontinue, or distribute, without charge, any drug, laboratory test, or medicine, device, or treatment, including a controlled substance, rational to the practice of psychology and recognized or customarily used in the diagnosis, treatment, and management of individuals with psychiatric, mental, cognitive, nervous, emotional, or behavioral disorders; or other procedures directly related

to such treatment and within the scope of practice of psychology, in accordance with rules adopted by the board.

(b)

(1) The board shall certify doctoral-level psychologists to exercise prescriptive authority in accordance with applicable state and federal law.

(2) The board shall develop and implement rules for reviewing education and training credentials for the certification process, in accordance with current standards of professional psychological practice.

(c)

(1) A psychologist who applies for prescriptive authority must demonstrate the following by official transcript or other official evidence satisfactory to the board:

(A) The psychologist must hold a current license at the doctoral level to provide healthcare services as a psychologist in this state;

(B) The psychologist must have completed an educational program leading to a post-doctoral master's degree in clinical psychopharmacology from a regionally accredited college or university, or its equivalent as determined by the board, which offers intensive didactic education, and includes the following core areas of instruction:

(i) Basic life sciences;

(ii) Neurosciences;

(iii) Clinical and research pharmacology and psychopharmacology;

(iv) Physiology and pathophysiology;

(v) Physical assessment and laboratory exams;

(vi) Clinical pharmacotherapeutics;

(vii) Research; and

(viii) Professional, ethical, and legal issues;

(C) The psychologist must pass a prescribing examination developed by a nationally recognized body and approved by the board; and

(D) The psychologist must have successfully completed a fellowship of at least one (1) year in length, completing psychopharmacological evaluations of a minimum of one hundred (100) patients under the supervision of a physician or prescribing psychologist.

(2) The didactic portion of the educational program described in subdivision (c)(1)(B) must consist of at least four hundred fifty (450) patient contact hours.

(3) Upon completion of the requirements set out in subdivision (c)(1) to the satisfaction of the board, a psychologist may make application to the board for an advanced certificate to prescribe as a prescribing psychologist in such manner as the board may require.

(4) An applicant who has a current license as a prescribing psychologist or medical psychologist in another state or territory of the United States that meets the requirements of this section for an advanced certificate, as determined by the board, may make application to the board for an advanced certificate to prescribe as long as the applicant currently holds or obtains a license at the doctoral level to provide healthcare services as a psychologist in this state.

(d)

(1) The board shall prescribe by rule a method for the renewal of an advanced certificate to prescribe as a prescribing psychologist that coincides with the time of or is in conjunction with the renewal of licenses.

(2) A prescribing psychologist shall fulfill such continuing education requirements for psychologists as required by the board by rule. In addition, each applicant for renewal of prescriptive authority shall present satisfactory evidence to the board demonstrating the completion of an additional twenty (20) contact hours of continuing education instruction relevant to prescriptive authority during the previous two-year licensure renewal period.

(e)

(1) A prescribing psychologist shall only:

(A) Exercise prescriptive authority and generate prescriptions in accordance with this section; and

(B) Prescribe drugs utilized for the treatment of behavioral health or mental, nervous, substance abuse, emotional, or cognitive diseases or disorders.

(2) A psychologist shall not issue a prescription unless the psychologist holds a valid advanced certificate to prescribe as a prescribing psychologist or an initial certificate to prescribe.

(3) Each prescription issued by a prescribing psychologist must:

(A) Comply with all applicable state and federal laws and rules;
and

(B) Be identified as written by the prescribing psychologist in such manner as determined by the board by rule.

(4) A prescribing psychologist shall maintain a record of each prescription written to a patient in the patient's record.

(5) A prescribing psychologist shall not:

(A) Administer electroconvulsive therapy;

(B) Prescribe a narcotic drug or an opiate; or

(C) Prescribe medications for patients who are not concurrently under the care of a treating physician or other primary care provider.

(f)

(1) A prescribing psychologist licensed by the board is eligible for a controlled and dangerous substances certificate issued by this state and the United States drug enforcement agency.

(2) The board shall maintain current records of every psychologist authorized to prescribe, including DEA registration and number.

(g)

(1) The board shall transmit to the board of pharmacy a list of prescribing psychologists that contains the following information:

(A) The name of the prescribing psychologist;

(B) The prescribing psychologist's identification number assigned by the board of examiners in psychology; and

(C) The effective date of prescriptive authority.

(2) The board shall promptly forward to the board of pharmacy additions to the list required by subdivision (g)(1) as new certificates are issued.

(3) The board shall notify the board of pharmacy in a timely manner upon the termination, suspension, or reinstatement of a prescribing psychologist's prescriptive authority.

(h) Notwithstanding another law or rule to the contrary, it is considered to be within the scope of practice for a registered nurse, licensed practical nurse, polysomnographer, or other non-prescribing healthcare professional licensed under this title to execute and effectuate a verbal or written order or direction otherwise within the scope of practice of such healthcare provider when that order is within the scope of practice of psychology and given to the healthcare provider by a psychologist or prescribing psychologist.

(i) The board shall promulgate rules in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5, for denying, modifying, suspending, or revoking the prescriptive authority of a prescribing psychologist. The board may require remediation of any deficiencies in the training or practice pattern of a prescribing psychologist when, in the judgment of the board, such deficiencies could reasonably be expected to jeopardize the health, safety, or welfare of the public.

SECTION 2. Tennessee Code Annotated, Section 39-17-402(23)(A), is amended by deleting the language "optometrist, veterinarian" and substituting "optometrist, prescribing psychologist, veterinarian".

SECTION 3. Tennessee Code Annotated, Section 53-10-105, is amended by deleting the language "or veterinarian" wherever it appears in subsection (a) and subdivision (b)(2) and substituting "prescribing psychologist authorized pursuant to § 63-11-227, or veterinarian".

SECTION 4. Tennessee Code Annotated, Section 63-7-103(a)(2)(D), is amended by deleting the language "podiatrist, or nurse" and substituting "podiatrist, prescribing psychologist authorized pursuant to § 63-11-227, or nurse".

SECTION 5. Tennessee Code Annotated, Section 63-10-204(42), is amended by deleting the language "or other allied medical practitioner" wherever it appears in subdivisions

(A)(i) and (B) and substituting "prescribing psychologist authorized pursuant to § 63-11-227, or other allied medical practitioner".

SECTION 6. Tennessee Code Annotated, Section 63-11-204(a), is amended by deleting the language "Nothing in" and substituting "Except as otherwise provided in § 63-11-227, nothing in".

SECTION 7. Tennessee Code Annotated, Section 63-11-218(a), is amended by deleting the language "for the ensuing year" and substituting "for the ensuing year, as well as any initial application fees and other costs specifically associated with the renewal of certification requirements as a prescribing psychologist".

SECTION 8. Tennessee Code Annotated, Section 63-31-101, is amended by deleting the language "licensed physician" wherever it appears in subdivisions (6), (7), (9)(A), (9)(A)(iii), and (9)(A)(iv) and substituting "licensed physician or a prescribing psychologist who is a diplomate of the American board of sleep medicine".

SECTION 9. Tennessee Code Annotated, Section 68-29-121, is amended by deleting the language "chiropractic physician" wherever it appears in subsections (a) and (b) and substituting "chiropractic physician, prescribing psychologist".

SECTION 10. For the purpose of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2025, the public welfare requiring it.